



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 14 1995

DOT-E 11448

EXPIRATION DATE: June 30, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Amalgamet Canada, Toronto, Ontario, Canada
Agent: AMC Chemicals, Ridgefield, New Jersey.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain materials poisonous by inhalation, Hazard Zone B, in stainless steel drums which are not individually overpacked in accordance with 49 CFR 173.227(b). This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.227(c).
5. BASIS: This exemption is based on Amalgamet Canada's application dated March 22, 1995, submitted in accordance with 49 CFR 107.103 and the public process thereon, and additional information dated June 27, 1995.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	ID number	Packing Group
Toxic liquid, corrosive, inorganic, n.o.s. (Germanium tetrachloride)	6.1	UN 3289	I, Hazard Zone B
Titanium tetrachloride	8	UN 1838	II, Hazard Zone B
Phosphorus Oxychloride	8	UN 1810	II, Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packagings prescribed are stainless steel UN1A1 drums, meeting all requirements for the inner drum in §173.227(b). The minimum thickness of the drums is 3 mm (0.118 inch).

b. Drums authorized by this exemption must be transported in a steel overpack, four drums in each overpack, as described in Amalgamet Canada's March 22, 1995 application. Within the overpack, the four drums must be held in place and apart from each other by the metal frame described in Thyssen Haniel Logistic's June 27, 1995 description. In addition, the steel overpack must:

1. be sealed by Amalgamet Canada after loading; and
2. be shipped from one origin to one destination without any intermediate pickup or delivery.

8. SPECIAL PROVISIONS.

Amalgamet Canada must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle or cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

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12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

b. The Exemptions Program, OHMEA shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence.

Issued at Washington, D.C.:

JUL 14 1995


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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